

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

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PRINCE AMON-RA,

Plaintiff,

Index No.:
Date Purchased:

-against-

CITY OF NEW YORK, POLICE OFFICER BATZ,
BADGE NUMBER 2992, POLICE OFFICER
ALMONTE, BADGE NUMBER 3374, POLICE
OFFICER CACERES, BADGE NUMBER 3073,
POLICE OFFICER ACEVEDO, BADGE
NUMBER 3365,

Plaintiff designates Bronx
County as the place of trial.

Basis of venue is place
of occurrence.

Defendants.

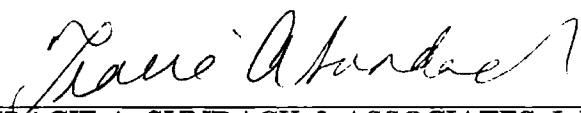
SUMMONS

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To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
May 11, 2022


TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
PRINCE AMON-RA
180 South Broadway - Suite 306
White Plains, New York 10605
(914) 946-8100

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER BATZ, BADGE NUMBER 2992,
POLICE OFFICER ALMONTE, BADGE NUMBER 3374
POLICE OFFICER CACERES, BADGE NUMBER 3073,
POLICE OFFICER ACEVEDO, BADGE NUMBER 3365,
Transit Bureau District 11
161st Street - Yankee Stadium Station
Bronx, New York, 10451

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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PRINCE AMON-RA,

Plaintiff,

Index No.:

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CITY OF NEW YORK, POLICE OFFICER BATZ,
BADGE NUMBER 2992, POLICE OFFICER
ALMONTE, BADGE NUMBER 3374, POLICE
OFFICER CACERES, BADGE NUMBER 3073,
POLICE OFFICER ACEVEDO, BADGE
NUMBER 3365,

VERIFIED COMPLAINT

Defendants.

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Plaintiff PRINCE AMON-RA by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, POLICE OFFICER BATZ, BADGE NUMBER 2992, POLICE OFFICER ALMONTE, BADGE NUMBER 3374, POLICE OFFICER CACERES, BADGE NUMBER 3073, and POLICE OFFICER ACEVEDO, BADGE NUMBER 3365, respectfully alleges as follows:

1. Plaintiff PRINCE AMON-RA is a black male, a citizen of the United States, and at all relevant times a resident of the City and State of New York.

2. At all times hereinafter mentioned Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.

3. At all times hereinafter mentioned Defendant CITY OF NEW YORK, its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, including all the police officers thereof.

4. At all times hereinafter mentioned, Defendant POLICE OFFICER BATZ, BADGE NUMBER 2992, was employed by Defendant CITY OF NEW YORK as a police officer.

5. At all times hereinafter mentioned, Defendant POLICE OFFICER BATZ, BADGE NUMBER 2992, acted within the scope of his employment for Defendant CITY OF NEW YORK.

6. At all times hereinafter mentioned, Defendant POLICE OFFICER BATZ, BADGE NUMBER 2992, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

7. At all times hereinafter mentioned, Defendant POLICE OFFICER ALMONTE, BADGE NUMBER 3374, was employed by Defendant CITY OF NEW YORK as a police officer.

8. At all times hereinafter mentioned, Defendant POLICE OFFICER ALMONTE, BADGE NUMBER 3374, acted within the scope of his employment for Defendant CITY OF NEW YORK.

9. At all times hereinafter mentioned, Defendant POLICE OFFICER ALMONTE, BADGE NUMBER 3374, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

10. At all times hereinafter mentioned, Defendant POLICE OFFICER CACERES, BADGE NUMBER 3073, was employed by Defendant CITY OF NEW YORK as a police officer.

11. At all times hereinafter mentioned, Defendant POLICE OFFICER CACERES, BADGE NUMBER 3073, acted within the scope of his employment for Defendant CITY OF NEW YORK.

12. At all times hereinafter mentioned, Defendant POLICE OFFICER CACERES, BADGE NUMBER 3073, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

13. At all times hereinafter mentioned, Defendant POLICE OFFICER ACEVEDO, BADGE NUMBER 3365, was employed by Defendant CITY OF NEW YORK as a police officer.

14. At all times hereinafter mentioned, Defendant POLICE OFFICER ACEVEDO, BADGE NUMBER 3365, acted within the scope of his employment for Defendant CITY OF NEW YORK.

15. At all times hereinafter mentioned, Defendant POLICE OFFICER ACEVEDO, BADGE NUMBER 3365, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

16. On April 16, 2021, at approximately 2:45 P.M., Plaintiff PRINCE AMON-RA was in front of 248 East Fordham Road, Bronx, New York, his place of employment (Fallen Angels Tattoo NYC) handing out flyers and business cards when he was suddenly accosted by members of the New York City Police Department including Defendants POLICE OFFICER BATZ, BADGE NUMBER 2992, POLICE OFFICER ALMONTE, BADGE NUMBER 3374, POLICE OFFICER CACERES, BADGE NUMBER 3073, and POLICE OFFICER ACEVEDO, BADGE NUMBER 3365.

17. At that time, Defendants POLICE OFFICER BATZ, BADGE NUMBER 2992, POLICE OFFICER ALMONTE, BADGE NUMBER 3374, POLICE OFFICER CACERES, BADGE NUMBER 3073, and POLICE OFFICER ACEVEDO, BADGE NUMBER 3365, proceeded to search Plaintiff. Upon information and belief, the search failed to find any evidence of illegal activity or give cause for Plaintiff PRINCE AMON-RA's arrest.

18. After the search was completed, Defendants POLICE OFFICER BATZ, BADGE NUMBER 2992, POLICE OFFICER ALMONTE, BADGE NUMBER 3374, POLICE OFFICER CACERES, BADGE NUMBER 3073, and POLICE OFFICER ACEVEDO, BADGE NUMBER 3365, handcuffed Plaintiff and placed him under arrest despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

19. Plaintiff PRINCE AMON-RA remained handcuffed and was illegally detained for approximately one hour before being released without charge.

20. Upon information and belief, the complained of acts occurred in front of Plaintiff PRINCE AMON-RA's nine year old daughter.

21. As a result of the foregoing, Plaintiff PRINCE AMON-RA sustained, *inter alia*, physical injuries, emotional distress, embarrassment, humiliation, and deprivation of his constitutional rights.

22. On June 11, 2021, within 90 days of the happening of the complained of incident but more than 30 days prior to the commencement of this action, Plaintiff PRINCE AMON-RA duly presented, served, and filed a Notice of Claim, in writing, upon the Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant and claimant's attorney; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

23. More than 30 days have elapsed since service of said Notice of Claim and payment or adjustment thereof has been neglected or refused on behalf of Defendants CITY OF NEW YORK, POLICE OFFICER BATZ, BADGE NUMBER 2992, POLICE OFFICER ALMONTE, BADGE NUMBER 3374, POLICE OFFICER CACERES, BADGE NUMBER 3073, and POLICE OFFICER ACEVEDO, BADGE NUMBER 3365.

24. The Municipal Hearing regarding the above claim was held on July 26, 2021.

25. This action is commenced within one year and ninety days after the cause of action arose

AS AND FOR A FIRST CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR FALSE ARREST

26. Plaintiff PRINCE AMON-RA repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

27. Defendants POLICE OFFICER BATZ, BADGE NUMBER 2992, POLICE OFFICER ALMONTE, BADGE NUMBER 3374, POLICE OFFICER CACERES, BADGE NUMBER 3073, and POLICE OFFICER ACEVEDO, BADGE NUMBER 3365, arrested Plaintiff PRINCE AMON-RA in the absence of probable cause and without a warrant.

28. As a result of the aforesaid conduct by Defendants POLICE OFFICER BATZ, BADGE NUMBER 2992, POLICE OFFICER ALMONTE, BADGE NUMBER 3374, POLICE OFFICER CACERES, BADGE NUMBER 3073, and POLICE OFFICER ACEVEDO, BADGE

NUMBER 3365, Plaintiff PRINCE AMON-RA was subjected to an illegal, improper and false arrest by the Defendants and taken into custody and cause to be falsely imprisoned, detained, and confined by the Defendants.

29. The aforesaid actions by the Defendants constituted a deprivation of Plaintiff PRINCE AMON-RA's rights.

AS AND FOR A SECOND CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR FALSE IMPRISONMENT

30. Plaintiff PRINCE AMON-RA repeats, reiterates, and realleges each and every paragraph of this complaint and further allege:

31. As a result of the foregoing, Plaintiff PRINCE AMON-RA was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints.

32. Plaintiff PRINCE AMON-RA was conscious of said confinement and did not consent to same.

33. The confinement of Plaintiff PRINCE AMON-RA was without probable cause and was not otherwise privileged.

34. As a result of the aforementioned conduct, Plaintiff PRINCE AMON-RA has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

AS AND FOR A THIRD CAUSE OF ACTION
FOR FALSE ARREST UNDER 42 U.S.C. § 1983

35. Plaintiff PRINCE AMON-RA repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

36. That at the aforementioned time and place, Defendants POLICE OFFICER BATZ, BADGE NUMBER 2992, POLICE OFFICER ALMONTE, BADGE NUMBER 3374, POLICE OFFICER CACERES, BADGE NUMBER 3073, and POLICE OFFICER ACEVEDO, BADGE NUMBER 3365, placed Plaintiff PRINCE AMON-RA under arrest, despite Defendants' knowledge that they lacked probable cause to do so.

37. That Plaintiff PRINCE AMON-RA had not committed any offense and Defendants POLICE OFFICER BATZ, BADGE NUMBER 2992, POLICE OFFICER ALMONTE, BADGE NUMBER 3374, POLICE OFFICER CACERES, BADGE NUMBER 3073, and POLICE OFFICER ACEVEDO, BADGE NUMBER 3365, did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

38. That Defendants POLICE OFFICER BATZ, BADGE NUMBER 2992, POLICE OFFICER ALMONTE, BADGE NUMBER 3374, POLICE OFFICER CACERES, BADGE NUMBER 3073, and POLICE OFFICER ACEVEDO, BADGE NUMBER 3365, were aware that probable cause did not exist for the arrest and detention of Plaintiff PRINCE AMON-RA and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff PRINCE AMON-RA and such actions were committed in bad faith.

39. That, in all of the wrongful acts above alleged, Defendants POLICE OFFICER BATZ, BADGE NUMBER 2992, POLICE OFFICER ALMONTE, BADGE NUMBER 3374, POLICE OFFICER CACERES, BADGE NUMBER 3073, and POLICE OFFICER ACEVEDO, BADGE NUMBER 3365, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff PRINCE AMON-RA and such actions were committed in bad faith.

40. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER BATZ, BADGE NUMBER 2992, POLICE OFFICER ALMONTE, BADGE NUMBER 3374, POLICE OFFICER CACERES, BADGE NUMBER 3073, and POLICE OFFICER ACEVEDO, BADGE NUMBER 3365, all committed under color of their authority as police officers, and while acting in that capacity, Plaintiff PRINCE AMON-RA was deprived of the rights and immunities secured to him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

41. As a further result of the above-described acts, Plaintiff PRINCE AMON-RA was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION
FOR FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983

42. Plaintiff PRINCE AMON-RA repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

43. Plaintiff PRINCE AMON-RA was falsely imprisoned by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants POLICE OFFICER BATZ, BADGE NUMBER 2992, POLICE OFFICER ALMONTE, BADGE NUMBER 3374, POLICE OFFICER CACERES, BADGE NUMBER 3073, and POLICE OFFICER ACEVEDO, BADGE NUMBER 3365, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

44. Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants POLICE OFFICER BATZ, BADGE NUMBER 2992, POLICE OFFICER ALMONTE, BADGE NUMBER 3374, POLICE OFFICER CACERES, BADGE NUMBER 3073, and POLICE OFFICER ACEVEDO, BADGE NUMBER 3365, and intended to confine Plaintiff PRINCE AMON-RA, and Plaintiff PRINCE AMON-RA was conscious of the confinement, and Plaintiff PRINCE AMON-RA did not consent to the confinement.

45. Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff PRINCE AMON-RA and damaging Plaintiff PRINCE AMON-RA in his reputation and depriving him of his liberty.

46. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER BATZ, BADGE NUMBER 2992, POLICE OFFICER ALMONTE, BADGE NUMBER 3374, POLICE OFFICER CACERES, BADGE NUMBER 3073, and POLICE OFFICER ACEVEDO, BADGE NUMBER 3365, all committed under color

of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff PRINCE AMON-RA suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

AS AND FOR A FIFTH CAUSE OF ACTION
FOR MUNICIPAL LIABILITY

47. Plaintiff PRINCE AMON-RA repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

48. Defendants POLICE OFFICER BATZ, BADGE NUMBER 2992, POLICE OFFICER ALMONTE, BADGE NUMBER 3374, POLICE OFFICER CACERES, BADGE NUMBER 3073, and POLICE OFFICER ACEVEDO, BADGE NUMBER 3365, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/ authority, which is forbidden by the Constitution of the United States.

49. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

50. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well- being and constitutional rights of Plaintiff PRINCE AMON-RA.

51. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff PRINCE AMON-RA as alleged herein.

52. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff PRINCE AMON-RA as alleged herein.

53. Defendants POLICE OFFICER BATZ, BADGE NUMBER 2992, POLICE OFFICER ALMONTE, BADGE NUMBER 3374, POLICE OFFICER CACERES, BADGE NUMBER 3073, and POLICE OFFICER ACEVEDO, BADGE NUMBER 3365, while acting under the color of state law, were directly and actively involved in violating Plaintiff PRINCE AMON-RA' constitutional rights.

54. All of the foregoing acts by Defendant CITY OF NEW YORK, its agents, servants and/or employees including Defendants POLICE OFFICER BATZ, BADGE NUMBER 2992, POLICE OFFICER ALMONTE, BADGE NUMBER 3374, POLICE OFFICER CACERES, BADGE NUMBER 3073, and POLICE OFFICER ACEVEDO, BADGE NUMBER 3365, deprived Plaintiff PRINCE AMON-RA of federally protected rights including, but not limited to, the right:

- A. To be free from seizure and arrest not based on probable cause;
- B. To be free from unlawful search; and
- C. To receive equal protection under the law.

AS AND FOR A SIXTH CAUSE OF ACTION
FOR NEGLIGENCE IN THE PERFORMANCE OF DUTIES

55. Plaintiff PRINCE AMON-RA repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges

56. That on April 16, 2021, Defendant CITY OF NEW YORK through its agents, servants and/or employees including, but not limited to, Defendants POLICE OFFICER BATZ, BADGE NUMBER 2992, POLICE OFFICER ALMONTE, BADGE NUMBER 3374, POLICE OFFICER CACERES, BADGE NUMBER 3073, negligently, carelessly, recklessly, and without cause, reason or justification injured Plaintiff PRINCE AMON-RA when, *inter alia*, Defendants improperly and negligently applied handcuffs to Plaintiff's wrists.

57. That Defendant CITY OF NEW YORK its agents, servants and employees, including Defendants POLICE OFFICER BATZ, BADGE NUMBER 2992, POLICE OFFICER ALMONTE, BADGE NUMBER 3374, and POLICE OFFICER CACERES, BADGE NUMBER

3073, negligently, carelessly and recklessly performed their duties in that they failed to use such care in the performance of their duties as a reasonably prudent police officer would have used under similar circumstances; in failing to exercise due care, diligence and forbearance so as to have avoided this incident and the injuries to the Plaintiff; in violating those laws, statutes, ordinances, rules and regulations applicable hereto, of which the Court may take judicial notice; and in that Defendant CITY OF NEW YORK, its agents, servants and employees, including Defendants POLICE OFFICER BATZ, BADGE NUMBER 2992, POLICE OFFICER ALMONTE, BADGE NUMBER 3374, POLICE OFFICER CACERES, BADGE NUMBER 3073, and POLICE OFFICER ACEVEDO, BADGE NUMBER 3365, were otherwise careless, reckless and negligent.

58. As a result of the foregoing, Plaintiff PRINCE AMON-RA suffered serious personal injuries causing him to become and remain sick, sore, lame, and disabled; confining him to cell and bed; compelling him to obtain hospital and medical treatment for the injuries in an effort to alleviate and/or cure some of the injuries and disabilities; incapacitating him from his usual duties, and thereby depriving him of the emoluments deprived therefrom, preventing him from enjoying the normal fruits of his activities; and resulting in emotional distress, loss of liberty, substantial monetary expenses, loss and injuries, some of which are permanent in nature.

59. The injuries and damages sustained by Plaintiff PRINCE AMON-RA were caused by reason of Defendants' negligence and were not caused by any want, lack of care or caution on the part of the Plaintiff.

60. This action falls within one or more of the exceptions set forth in CPLR 1602.

61. By reason of the foregoing, Plaintiff PRINCE AMON-RA has been damaged in an amount in excess of the jurisdiction of all lower Courts that might otherwise have jurisdiction in this matter.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
NEGLIGENT HIRING AND RETENTION**

62. Plaintiff PRINCE AMON-RA repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

63. Defendant CITY OF NEW YORK was careless and reckless in hiring and retaining as and for its employees Defendants POLICE OFFICER BATZ, BADGE NUMBER 2992, POLICE OFFICER ALMONTE, BADGE NUMBER 3374, POLICE OFFICER CACERES, BADGE NUMBER 3073, and POLICE OFFICER ACEVEDO, BADGE NUMBER 3365, in that said Defendant employees lacked the experience, deportment and ability to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring practices, and in particular, in hiring the Defendant employees who lacked the mental capacity and the ability to function as employees of Defendant CITY OF NEW YORK; in that the defendant employees lacked the maturity, sensibility and intelligence to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK knew of the lack of ability, experience, deportment and maturity of said defendant employees when they hired them to be employees; and, in that Defendant CITY OF NEW YORK, its agents, servants and/or employees were otherwise careless, negligent and reckless.

64. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of Defendants POLICE OFFICER BATZ, BADGE NUMBER 2992, POLICE OFFICER ALMONTE, BADGE NUMBER 3374, POLICE OFFICER CACERES, BADGE NUMBER 3073, and POLICE OFFICER ACEVEDO, BADGE NUMBER 3365, to engage in the wrongful conduct heretofore alleged in this Complaint.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
NEGLIGENT TRAINING AND SUPERVISION**

65. Plaintiff PRINCE AMON-RA repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

66. The failure of Defendant CITY OF NEW YORK to adequately train, supervise, discipline or in any way control the behavior of Defendants POLICE OFFICER BATZ, BADGE NUMBER 2992, POLICE OFFICER ALMONTE, BADGE NUMBER 3374, POLICE OFFICER CACERES, BADGE NUMBER 3073, and POLICE OFFICER ACEVEDO, BADGE NUMBER 3365, in the exercise of their employment functions, and the failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK is evidence of the

reckless lack of cautious regard for the rights of the public including Plaintiff PRINCE AMON-RA. Further, the Defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

67. The failure of Defendant CITY OF NEW YORK to train, supervise, discipline or in any other way control Defendants POLICE OFFICER BATZ, BADGE NUMBER 2992, POLICE OFFICER ALMONTE, BADGE NUMBER 3374, POLICE OFFICER CACERES, BADGE NUMBER 3073, and POLICE OFFICER ACEVEDO, BADGE NUMBER 3365, in the exercise of his employment functions and the failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff PRINCE AMON-RA.

**AS AND FOR NINTH CAUSE OF ACTION FOR
RESPONDEAT SUPERIOR LIABILITY**

68. Plaintiff PRINCE AMON-RA repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

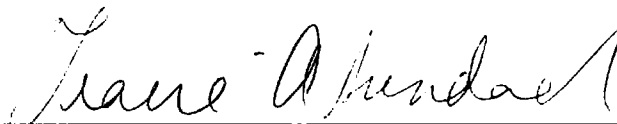
69. Defendant CITY OF NEW YORK is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

70. As a result of the foregoing, Plaintiff PRINCE AMON-RA is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages in the sum of Two Million Dollars (\$2,000,000.00)

WHEREFORE Plaintiff PRINCE AMON-RA demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER BATZ, BADGE NUMBER 2992, POLICE OFFICER ALMONTE, BADGE NUMBER 3374, POLICE OFFICER CACERES, BADGE NUMBER 3073, and POLICE OFFICER ACEVEDO, BADGE NUMBER 3365, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and

Two Million Dollars (\$2,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
May 11, 2022

A handwritten signature in cursive script, appearing to read "Tracie A. Sundack", written in black ink.

TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
PRINCE AMON-RA
180 South Broadway - Suite 306
White Plains, New York 10605
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) SS.:
COUNTY OF WESTCHESTER)

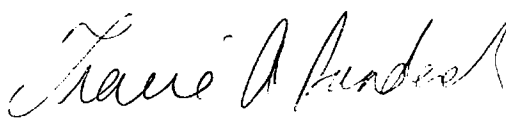
I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am a principal in the law office of Tracie A. Sundack & Associates, L.L.C., attorneys of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirmant maintains his office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by our office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
May 11, 2022



TRACIE SUNDACK

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

PRINCE AMON-RA,

Plaintiff,

~ against ~

CITY OF NEW YORK, POLICE OFFICER BATZ,
BADGE NUMBER 2992, POLICE OFFICER
ALMONTE, BADGE NUMBER 3374, POLICE
OFFICER CACERES, BADGE NUMBER 3073,
POLICE OFFICER ACEVEDO, BADGE
NUMBER 3365,

Defendants.

SUMMONS & VERIFIED COMPLAINT**TRACIE A. SUNDACK & ASSOCIATES, L.L.C.**

Attorneys for Plaintiff

PRINCE AMON-RA

180 South Broadway - Suite 306

White Plains, New York 10605

(914) 946-8100

To: **ALL PARTIES**

Service of a copy of the within

is hereby admitted

Dated:

Attorney(s) for

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated:

Signature: _____

TRACIE A. SUNDACK**PLEASE TAKE NOTICE**NOTICE OF
ENTRYthat the within is a (certified) true copy of a
entered in the office of the clerk of the within named court on

20

NOTICE OF
SETTLEMENTthat an Order of which the within is a true copy will be presented for settlement to the
Hon. _____ one of the judges of the within named Court,
at _____ 20 _____, at _____ M.
on

Dated: